

with as little effect examine how far the trustee has made an undue use of information acquired by him in the course of his duty in the one case as in the other (*c*).

4. **Agent of trustee may not buy.**—And the rule against purchasing the trust property applies to an *agent* employed by the trustee for the purposes of the sale, as strongly as to the trustee himself (*d*). And an *agent not for sale, but for management only* (*e*), and a *receiver* appointed by the Court (*f*) stand in a confidential relation, and cannot purchase without putting themselves at arm's length, and a full disclosure of their knowledge; [and the partner of a trustee, or any other person through whom the trustee may directly or indirectly derive benefit by reason of the purchase, cannot purchase the trust property from the trustee (*g*).]

5. **Trustees may not lease to themselves.**—The *lease* of an estate is in fact the sale of a partial interest in it, and therefore trustees for sale cannot demise to one of themselves, but the lessee, while he shall be held to his bargain if disadvantageous to him, shall be made to account for the profits if it be in his favour (*h*).

*6. **Specific performance.**—Where a trustee for [*487] sale was the purchaser by an agent at the auction, the *heir* of the trustee had no right to have the contract completed at the expense of the *personal* estate, though the *cestuis que trust* were willing to acquiesce in the sale (*a*).

7. **Trustee may purchase from the cestui que trust.**—When it is said that a trustee for sale may not purchase the trust property, the meaning must be understood to be that the trustee may not *purchase from himself*, that is, he cannot

(*c*) *Ex parte* Bennett, 10 Ves. 381, see 400; *Coles v. Trecothick*, 9 Ves. 248, *per* Lord Eldon; and see *Gregory v. Gregory*, G. Coop. 204; [*Mockerjee v. Mockerjee*, 2 L. R. Ind. App. 18.]

(*d*) *Whitcomb v. Minchin*, 5 Mad. 91; *In re Bloye's Trust*, 1 Mac. & G. 488, see 495; [*Martinson v. Clowes*, 21 Ch. D. 857.]

(*e*) *King v. Anderson*, 8 I. R. Eq. 147, 825; *Alven v. Bond*, 1 Flan. & Kelly, 196.

(*f*) *Alven v. Bond*, 1 Flan. & Kelly, 196; *White v. Tommy*, referred to, *Ib.* 224.

[(*g*) *Ex parte* Moore, 51 L. J. N. S. Ch. 72; 45 L. T. N. S. 558; *Ex parte* Burnell, 7 Jur. 116.]

(*h*) *Ex parte* Hughes, 6 Ves. 617; *Attorney-General v. Earl of Clarendon*, 17 Ves. 491, see 500.

(*a*) *Ingle v. Richards* (No. 1), 28 Beav. 361.